

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                  |                                            |                                                        |                                               |                                 |
|---------------------------------------------------|----------------------------------------------------------------------------------|--------------------------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Danny Rivera                     | Team:<br>Team # 3                                                                | CCRB Case #:<br>200714403                  | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                                  |                                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 10/02/2007 9:15 PM   | Location of Incident:<br>104th Street between Northern Boulevard and 34th Avenue | 18 Mo. SOL<br>4/2/2009                     | Precinct:<br>115                                       |                                               |                                 |
| Date/Time CV Reported<br>Wed, 10/03/2007 12:23 AM | CV Reported At:<br>CCRB                                                          | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Wed, 10/03/2007 10:52 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. SGT Lawrence Fiorello | 01495  | 915719 | PBQN AC |
| 2. POM Alexandre Wancel  | 20090  | 935951 | 115 PCT |
| 3. POF Yisel Cabrera     | 03174  | 927995 | 115 PCT |
| 4. POM Vincent Calderone | 00328  | 936038 | 115 PCT |

| Witness Officer(s)             | Shield No | Tax No | Cmd Name |
|--------------------------------|-----------|--------|----------|
| 1. POF Elizabeth Delarosaperez | 13112     | 930935 | 115 PCT  |
| 2. POM German Ramos            | 24507     | 929006 | 115 PCT  |
| 3. POM Bobby Mohip             | 21083     | 934005 | 115 PCT  |

| Officer(s)                | Allegation                                                                                | Investigator Recommendation |
|---------------------------|-------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Alexandre Wancel  | Abuse: PO Alexander Wancel stopped the car in which § 87(2)(b) was an occupant.           | A . Unsubstantiated         |
| B . POM Alexandre Wancel  | Abuse: PO Alexander Wancel searched the car in which § 87(2)(b) was an occupant.          | B . Exonerated              |
| C . POF Yisel Cabrera     | Abuse: PO Yisel Cabrera searched the car in which § 87(2)(b) was an occupant.             | C . Exonerated              |
| D . POM Vincent Calderone | Abuse: PO Vincent Calderone searched § 87(2)(b)                                           | D . Unsubstantiated         |
| E . SGT Lawrence Fiorello | Discourtesy: Sgt. Lawrence Fiorello spoke obscenely to § 87(2)(b)                         | E . Unsubstantiated         |
| F . SGT Lawrence Fiorello | Abuse: Sgt. Lawrence Fiorello threatened to arrest § 87(2)(b)                             | F . Unsubstantiated         |
| G . SGT Lawrence Fiorello | Abuse: Sgt. Lawrence Fiorello refused to provide his name and shield number to § 87(2)(b) | G . Unsubstantiated         |

### Synopsis

§ 87(2)(b) filed this complaint with the Civilian Complaint Review Board on October 3, 2007. On October 2, 2007 at approximately 9PM, § 87(2)(b) was pulled over by two uniformed officers, PO Alexander Wancel and PO Yisel Cabrera of the 115<sup>th</sup> Precinct, in the vicinity of § 87(2)(b) and § 87(2)(b) in Queens (**Allegation A**). After a period of questioning during which § 87(2)(b) authorized PO Wancel to search his car, two more officers, Sergeant Lawrence Fiorello and his operator, PO Calderone, arrived at the scene. PO Calderone proceeded to take § 87(2)(b) to the back of his Ford Explorer, during which time PO Wancel and PO Cabrera performed a search of the vehicle (**Allegations B and C**). Following the inspection of his SUV, PO Calderone searched § 87(2)(b) (**Allegation D**). After PO Calderone finished his search of § 87(2)(b) Sergeant Fiorello stated, “You know you’re in a fucking drug area” (**Allegation E**). § 87(2)(b) replied that he lived and worked in the area, and subsequently asked why he had been stopped. At that point, Sergeant Fiorello said, “Do you fucking want to go to jail? I’ll lock up your ass right now.” (**Allegation F**). Prior to the officers leaving the scene, § 87(2)(b) requested from Sergeant Fiorello the names and badge numbers of all whom were present, but this information was not provided (**Allegation G**).

The case was originally assigned to Investigator Daniel Missale; upon his resignation, the case was reassigned to Investigator Daniel Erickson. Upon Investigator Erickson’s resignation, the case was reassigned to Investigator Danny Rivera on September 17, 2008.

§ 87(2)(g) it is recommended that Allegation A be closed as unsubstantiated. § 87(2)(g) it is recommended that Allegation B be closed as *exonerated*. § 87(2)(g) it is recommended that Allegation C be closed as *exonerated*. § 87(2)(g) it is recommended that Allegation D be closed as *unsubstantiated*. § 87(2)(g) it is recommended that Allegations E, F, and G be closed as *unsubstantiated*.

### Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) black male, who is § 87(2)(b), and has black hair and hazel eyes. § 87(2)(b) works for the § 87(2)(b) and was interviewed at the Civilian Complaint Review Board on October 12, 2007 (enclosure 9a-e).

At approximately 9 PM on October 2, 2007, § 87(2)(b) left his job, located on § 87(2)(b) and § 87(2)(b) in Queens, and walked to his 1994 green Ford Explorer. § 87(2)(b) entered his car and drove down § 87(2)(b) at about 35 MPH toward his stepmother’s house located on § 87(2)(b). § 87(2)(b) did not make any traffic violations prior to the incident. When § 87(2)(b) passed § 87(2)(b) he noticed an initially parked patrol car make a U-turn and head

toward his vehicle. § 87(2)(b) observed the lights of the patrol car and pulled over onto § 87(2)(b) between § 87(2)(b) and § 87(2)(b). Two uniformed officers, PO Wancel and PO Cabrera, who were identified via investigation, exited the patrol car. PO Wancel, who § 87(2)(b) described as a 5'10", 180lbs white/Hispanic male in his mid- to late thirties with a mustache and dark hair, approached the driver's side window. PO Cabrera, who § 87(2)(b) described as a 5'6", heavyset, blonde-haired female in her early thirties, approached from the passenger's side. Both officers had their hands on their guns. PO Wancel asked § 87(2)(b) where he was coming from. § 87(2)(b) replied that he was coming from work and provided the location. PO Wancel then asked § 87(2)(b) where he was going. § 87(2)(b) replied that he was going to his stepmother's house, located on § 87(2)(b). PO Wancel asked § 87(2)(b) where he was coming from two more times, a question to which § 87(2)(b) gave the same reply. PO Wancel asked § 87(2)(b) for his driver's license and registration. § 87(2)(b) requested permission to turn the light on in the car, which PO Wancel granted. § 87(2)(b) then informed PO Wancel that he would have to go into his back pocket to retrieve his license and registration; as he did so, he noticed that PO Cabrera had her hand on her weapon. § 87(2)(b) then asked PO Wancel why he was being stopped. PO Wancel did not reply and took § 87(2)(b) information to his patrol car. After running § 87(2)(b)'s information, PO Wancel asked him if there was anything in his vehicle about which he needed to be informed. § 87(2)(b) stated that there was nothing in his vehicle that the officers needed to know about. PO Wancel questioned § 87(2)(b) twice more about the contents of his automobile, and § 87(2)(b) confirmed that there was nothing inside his vehicle. Finally, § 87(2)(b) said to PO Wancel, "You want to search my vehicle? Search my vehicle." PO Wancel, who had not requested to search § 87(2)(b) vehicle, then went back to his RMP; upon his return, he asked § 87(2)(b) once again if there was anything in his vehicle. § 87(2)(b) yet again replied that there was nothing in his vehicle.

PO Wancel then told § 87(2)(b) to exit his vehicle, and he complied. At that point, § 87(2)(b) noticed a second patrol car arriving at the scene. PO Calderone, identified via investigation, and who § 87(2)(b) described as a heavyset white male in his mid-twenties with red hair, led § 87(2)(b) to the back of his vehicle. PO Wancel and PO Cabrera searched the front interior of the vehicle and made a visual inspection of the backseat through the vehicle's slightly tinted windows. The rear doors of the SUV were not opened, and the back seat was not searched. § 87(2)(b) stated that PO Wancel and PO Cabrera went through his ashtray, into the pockets on the doors, in the armrest, under the seats, under the dashboard cover, and in the glove compartment. § 87(2)(b) asked PO Calderone if he could watch them search his vehicle; initially reluctant, PO Calderone permitted him to stand to the side of the car so that he could observe the search of his vehicle. § 87(2)(b) subsequently asked PO Calderone why he was being stopped. PO Calderone said that PO Wancel and PO Cabrera would give him the reasons behind the stop. PO Wancel then exited § 87(2)(b)'s vehicle, at which time Sergeant Fiorello, identified via investigation and described as a heavyset white male with dark, brown hair who stands 6'0", arrived in a separate RMP. He then exited his vehicle. At that time Sergeant Fiorello said something, perhaps having to do with § 87(2)(b) criminal conviction history, to PO Wancel. PO Wancel subsequently asked § 87(2)(b) if there was anything on his person that they should know about, a question to which he replied in the negative. PO Wancel then instructed § 87(2)(b) to put his hands on his vehicle and started to perform the search, at which point PO Calderone said, "I got him," and continued with the search. PO Calderone did not pat § 87(2)(b) clothes before going into his pockets, all of which were searched, and removing his wallet. All that § 87(2)(b) had in his pockets were his keys, a wallet with money, and some cigarettes. There was nothing in his pockets, other than his wallet, that could have formed a suspicious bulge. § 87(2)(b) had been wearing jeans, sneakers, and a blue or burgundy collared shirt.

Once the search of § 87(2)(b) was complete, Sergeant Fiorello said, “You know you’re in a fucking drug area.” § 87(2)(b) stated that he lived and worked in a nearby § 87(2)(b). § 87(2)(b) continued, “Why am I being stopped?” Sergeant Fiorello repeated that § 87(2)(b) was in a known drug area, and that the officers were told by an individual that he saw § 87(2)(b) approaching another individual. § 87(2)(b) said that as soon as he left work, he entered his vehicle and drove towards his destination, and that at no point did he ever speak to anyone on his way. § 87(2)(b) then told Sergeant Fiorello, “Your guy is lying—I never stepped to anybody.” Sergeant Fiorello stated, “Well, that’s not our problem—we are not the ones who went to jail for robbery.” § 87(2)(b) asked what his previous arrests had to do with the incident, especially since he paid his debt to society and was now employed. Sergeant Fiorello told § 87(2)(b) to “Shut the fuck up,” at which point § 87(2)(b) asked why he was stopped by the officer. Sergeant Fiorello, who was in an “agitated” state, said, “Do you want to fucking go to jail? I’ll lock your ass up right now.” § 87(2)(b) said that he did not want to go to jail, but he needed to know why he was stopped; he did not receive an answer to his question. § 87(2)(b) then asked for the officers’ badge numbers. § 87(2)(b) made this request to Sergeant Fiorello—who responded with “Fuck you, get out of here”—but the request was for all of the officers’ badge numbers. The officers, who had been “antsy” throughout the incident (which was seen by about fifteen people, none of whom he knew), started laughing and entered their respective vehicles. As the officers pulled away, § 87(2)(b) wrote down the license plate numbers, 1439 and 1775, of the two patrol cars. § 87(2)(b) then went to the 110<sup>th</sup> Precinct to file a complaint. He knew that the officers that he encountered were from the 115<sup>th</sup> Precinct, but he did not feel safe filing the complaint there, as he figured that nothing would get done. An officer at the 110<sup>th</sup> Precinct said that he needed to go to the 115<sup>th</sup> Precinct or he could call 311, which was the course of action that § 87(2)(b) ultimately decided to take.

### **Results of Investigation**

#### **Officers Interviewed**

##### *Stop, Question, & Frisk Report (Enclosure 25a-b)*

The Stop, Question, & Frisk Report that was completed by PO Wancel states that § 87(2)(b) engaged in actions that were indicative of engaging in a drug transaction, and that he displayed furtive movements. Further, additional factors leading to the stop of § 87(2)(b) included the area’s high incidence of reported offense; the time and day of the incident corresponded with criminal activity; § 87(2)(b) was observed associating with individuals known for their criminal activity; and § 87(2)(b) gave false, evasive, or inconsistent answers to questions posed by officers. With regard to the frisk, it was justified based upon the knowledge that PO Wancel had of § 87(2)(b)’s prior criminal behavior, and that PO Wancel suspected that § 87(2)(b) had committed a violent crime. The UF-250 notes that § 87(2)(b) was suspected of criminal possession of a controlled substance.

##### *PO Alexander Wancel*

PO Alexander Wancel is a § 87(2)(b)-old Hispanic male who is § 87(2)(b). PO Wancel has black hair and brown eyes, and was interviewed at the CCRB on January 2, 2008 (enclosure 13a-b). PO Wancel was interviewed at the CCRB again on December 29, 2008. § 87(2)(g)

PO Wancel stated that on October 2, 2007, he worked from 5:30 PM until 2:05 AM the next morning, and that he believed he was partnered with PO Cabrera. PO Wancel was dressed in uniform and assigned to a marked RMP, but he could not recall its number. PO

Wancel's memo book (enclosure 15) indicates that he was assigned to a SNEU team and that he worked the hours noted above, but there are no entries reflecting any vehicle stops.

On October 2, 2007 at approximately 9:15 PM, PO Wancel and his SNEU team—the names of whose members, in plainclothes, he was unable to recall—were conducting a “set” on the corner of § 87(2)(b) and § 87(2)(b) in Queens, which is a known narcotics location. PO Wancel was assigned to the pick-up auto. The details of this assignment included receiving calls of possible drug activity from observers. At some point, PO Wancel received a call for a Suburban-type vehicle involved in possible drug activity. However, PO Wancel noted during his second interview that the description was of a *person*, involved in a drug transaction, who was in an SUV. PO Wancel, who did not recall the description that was forwarded by the observation post or where he was positioned when he received it, proceeded to follow the vehicle a few seconds later. The SUV was seen headed westbound on § 87(2)(b) towards § 87(2)(b) at which point PO Wancel pulled it over at § 87(2)(b) (though he did not recall if he had made a U-turn in order to follow him). The driver was stopped three blocks away from where he was first seen—§ 87(2)(b) and § 87(2)(b).

After pulling the SUV over, PO Wancel approached the vehicle and its driver, § 87(2)(b) at which time he requested to see his license, registration, and insurance information. (PO Wancel remarked that Sergeant Fiorello was in a patrol car directly behind his own during the vehicle stop and that officers in that vehicle backed him up, but did not recall if they assisted him in any way.) PO Wancel subsequently asked § 87(2)(b) if he had been arrested in the past, a question to which § 87(2)(b) responded in the affirmative, though he did not recall how many times he had asked § 87(2)(b) about where he had started his trip. PO Wancel did not recall § 87(2)(b) responses to his questioning, but did remember that an annoyed § 87(2)(b) “wasn’t very happy” with being stopped. PO Wancel then instructed § 87(2)(b) who was very “uncooperative,” to step out of his car, because any time the presence of narcotics is suspected—as in a SNEU set—there could be weapons, and because he does not like talking to drivers late at night in a narcotics-prone location. Also, he did not want to deal with an “agitated” individual in a car that would be able to reach within his “grabbable areas,” resulting with PO Wancel getting “shot in the face.” PO Wancel quickly frisked § 87(2)(b) only going so far as to inspect his waistband; he did not, however, go through § 87(2)(b) pockets.

However, during his second interview, PO Wancel initially stated that, with regard to a frisk and search of § 87(2)(b) person, that he had been the officer who performed such acts. When asked how extensive the frisk and search was conducted, PO Wancel stated that he had not searched § 87(2)(b). When asked to describe the degree to which he performed the frisk, PO Wancel mentioned that he patted down § 87(2)(b) to whose arrest record he referred—in order to ensure that he did not have any weapons, though none were found. PO Wancel explained his reasoning for frisking § 87(2)(b) by noting that narcotics is an inherently violent crime, and that he wanted to ensure, while speaking to an individual who was outside of his car, that neither he nor his fellow officers ran the risk of getting “shot in the face” or otherwise harmed. PO Wancel did not recall any other reason why he would have performed the frisk, as the incident took place a year-and-a-half-ago. Further, PO Wancel stated that he did not know where his partner was while he was speaking to, and frisking, § 87(2)(b).

Regarding the vehicle stop, PO Wancel could not recall who had authorized it, and could not recall the identities of the officers who were assigned to the observation post (and whose description of the driver's vehicle led PO Wancel and his partner to the SUV). When asked if any officers from the observation post—whose identities he did not recall—arrived at the scene, PO Wancel stated that officers from the observation post “have nothing to do with (investigations of)

possible narcotics transactions,” and he did not recall the name of the officer who escorted § 87(2)(b) to the rear of his vehicle. PO Wancel also did not recall if PO Gamarra, who has since resigned from the police department, was working on the evening of the incident or if he arrived at the scene. PO Wancel noted that PO Gamarra is a male Hispanic about 5’9” with a large build and short, black hair (officer Wancel later corrected himself to say that he did not recall the kind of hair PO Gamarra had at the time). Concerning PO Calderone, PO Wancel did not remember whether he was there or not, but speculated that PO Calderone could have been the operator for the attending supervisor, Sergeant Fiorello. PO Cabrera was also present during the incident. Further, PO Wancel did not recall how many times he had asked § 87(2)(b) about the contents of his SUV, or whether § 87(2)(b) had authorized him, or any other officer, to perform a search of his vehicle. During his first CCRB interview, PO Wancel, wanting to ensure that § 87(2)(b) was not in possession of a weapon, stated that he looked under the driver’s seat and in the center console with a flashlight, given that the stop, which lasted about two minutes, occurred at 10 PM. However, during his second interview, PO Wancel indicated that while he did not recall searching § 87(2)(b) vehicle, he did perform a *visual* inspection.

With regard to allegations against the other officers in the SNEU team, PO Wancel did not recall if any officers said, “You know you’re in a fucking drug area,” but did note that neither he nor his fellow officers used obscene language or make remarks such as, “Shut the fuck up.” While PO Wancel was unable to recall if § 87(2)(b) asked him to provide his name and badge number, he did remember that no other officers refused to provide § 87(2)(b) with their respective names and badge numbers, and that he did not personally threaten to arrest § 87(2)(b). Lastly, PO Wancel stated that § 87(2)(b) was sent on his way after being frisked. However, during his second interview, PO Wancel stated that he did not recall how the incident ended, but that a summons was not issued and an arrest was not made. The UF-250 that PO Wancel prepared following the stop reflects that § 87(2)(b) was suspected of criminal possession of a controlled substance.

#### *Sergeant Lawrence Fiorello*

Sergeant Fiorello is a § 87(2)(b)-old white male who stands at § 87(2)(b), and has brown hair and brown eyes. He was interviewed at the CCRB on March 25, 2008 (enclosure 16a-c). At the time of the incident, Sergeant Fiorello was assigned to Patrol Borough Queens North Anticrime, but has since been transferred to Patrol Borough Queens North Task Force. Sergeant Fiorello stated that on October 2, 2007, he worked from 5:30 PM until 2:04 AM the next morning, and was assigned as the supervisor for the SNEU team. The sergeant, in uniform and with his shield exposed, was in his RMP with PO Calderone; there were no other officers present inside his vehicle. Sergeant Fiorello’s memo book (enclosure 17a-b) indicates that he was assigned to the SNEU team, though it does not refer to a car stop or to an interaction with § 87(2)(b).

On October 2, 2007 at approximately 9:15 PM, Sergeant Fiorello’s SNEU team was undertaking a “set” at the corner of § 87(2)(b) and § 87(2)(b) when his observation team/post called out a subject, described as a large, black male approximately 6’5” with dreadlocks, that had made a hand-to-hand transaction, and gave information regarding this person’s vehicle—though the sergeant could not recall the description given regarding the vehicle— including his movement (driving north on § 87(2)(b) then west on § 87(2)(b)). The observation post was about thirty to fifty feet from where the subject was first observed. Using this intelligence, Sergeant Fiorello authorized the stop of the subject’s vehicle. At that point, PO Cabrera and PO Wancel radioed that they had § 87(2)(b) vehicle in sight, and that they were about to stop it at § 87(2)(b) between § 87(2)(b) and § 87(2)(b).

About a minute later, Sergeant Fiorello pulled up to the scene—on the east side of the street, parallel to the officers’ vehicle, which was on the west side of the street—on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) where he saw a man, later identified as § 87(2)(b) screaming at PO Cabrera and PO Wancel. (In terms of positioning, § 87(2)(b) and the officers were alongside the vehicle, towards the rear.) § 87(2)(b) stated that he was stopped because of his race, and that a black man cannot walk the streets of Jackson Heights without being stopped at some point. § 87(2)(b) was irate and flailing his arms; Sergeant Fiorello intervened between the parties, telling his two officers to return to their vehicle. § 87(2)(b) stated that he worked at a § 87(2)(b), and that he was trying to help kids, especially given his own criminal history. At no time was § 87(2)(b) threatened with arrest because of his behavior and attitude. Sergeant Fiorello also noted that § 87(2)(b)’s vehicle had not been searched, and that § 87(2)(b) himself was not searched in his presence. Sergeant Fiorello did not believe that § 87(2)(b) was searched and did not believe, given § 87(2)(b)’s behavior, that his officers would have had the time to perform one.

Sergeant Fiorello, who did not use obscenities during the incident, then told § 87(2)(b) that he was observed shaking hands with drug dealers and engaging in a hand-to-hand transaction with them, an action that leads to a stop and further investigation. § 87(2)(b) started to scream and yell at Sergeant Fiorello, saying that the officers did not know what they were doing, and that they were all rookies. Sergeant Fiorello, not wanting to bring a screaming individual into the stationhouse, took a quick look—though not a search of any sort that would have required the sergeant break the vehicle’s plane—into § 87(2)(b) vehicle (but did not see anything that was drug-related), and told his officers, who had not used any obscene phrases like “shut the fuck up” against § 87(2)(b) to “wrap it up.” Sergeant Fiorello interacted with § 87(2)(b) for two minutes before allowing him to leave.

Sergeant Fiorello, who did not recall if § 87(2)(b) had used obscenities against the officers, then ordered his officers to return to their original location. Sergeant Fiorello and his officers then left at the same time. A couple of minutes later after he was released, § 87(2)(b) who had not asked the sergeant or his officers for their respective names and badge numbers, was observed driving back to the location (south on § 87(2)(b) then turned east on § 87(2)(b) and north on § 87(2)(b) when he arrived at the site, he got out of his vehicle and engaged in conversation with drug dealers, to warn them off the drug deal. § 87(2)(b) then drove away from the scene, and the drug dealers went back inside their house. At that time, the SNEU set was closed, and no other activity took place.

#### *PO Yisel Cabrera*

PO Cabrera is a § 87(2)(b)-old Hispanic female who stands § 87(2)(b), and has black hair and brown eyes. PO Cabrera was interviewed at the CCRB on March 27, 2008 (enclosure 18a-b). PO Cabrera worked from 5:30 PM on October 2, 2007 until 2:05 AM on October 3, 2007, and was assigned to the SNEU as part of an apprehension unit. PO Cabrera was assigned to a marked vehicle, though she did not recall its number. PO Cabrera did not bring her memo book (enclosure 19a-b) with her to the interview; however, she did recall the incident in question. There are no entries in her memo book reflecting a vehicle stop at approximately 9:15 PM on October 2, 2007.

On October 2, 2007 at approximately 9:15 PM, PO Cabrera and the SNEU team were performing a “set” on § 87(2)(b) at which time the observation post called out a driver who had been spotted in a drug-prone location. The observation post gave a description of an SUV (though PO Cabrera could not remember what color had been described). PO Cabrera received this

description over the radio, and they had not previously seen what had been described to them. PO Cabrera and her partner stopped the vehicle about two blocks away from they were initially parked. As soon as PO Cabrera's partner, PO Wancel, approached the vehicle, its driver, § 87(2)(b) started yelling at the two officers. § 87(2)(b) said that the only reason that the officers had stopped him had been because he is "a black man in Jackson Heights," and that he works at a § 87(2)(b)—which happens to be opposite the location where the observation post was located. By this time, PO Cabrera, who did not interact with § 87(2)(b) was standing at the passenger-side of the vehicle, and § 87(2)(b) had been instructed to step out of the vehicle, which was not searched. Less than a minute later, her sergeant, Lawrence Fiorello, arrived, and saw that § 87(2)(b) was angry, waving his arms around, and yelling and screaming. The sergeant then instructed PO Cabrera and PO Wancel to move towards the back of the vehicle, and noted that he would attempt to defuse the situation. When the sergeant was unable to defuse the situation after speaking with § 87(2)(b) who was not searched, for about two minutes, he told PO Cabrera and her partner to take down § 87(2)(b) name, and to leave. PO Cabrera and PO Wancel then asked to see § 87(2)(b) ID, which he provided.

PO Cabrera left the scene before § 87(2)(b) and so she did not see him leave. PO Cabrera did not see him later that night; further, she did not see him ever again. In addition, PO Cabrera could not recall whether or not § 87(2)(b) had asked PO Cabrera and her partner for their respective names and shield numbers. PO Cabrera did not hear any officers threaten to arrest § 87(2)(b) if he didn't keep quiet, and she also did not hear any officers say, "Shut the fuck up."

#### *PO Bobby Mohip*

PO Mohip is a § 87(2)(b)-old black male who is § 87(2)(b), and has black hair and brown eyes. PO Mohip was interviewed at the CCRB on June 17, 2008 (Enclosure 20a-b). PO Mohip, dressed in plainclothes and driving an unmarked vehicle, worked from 4 PM on October 2, 2007 until 12:35 AM the following morning. However, he did not recall if he was the operator of the RMP or the recorder. He was assigned to an observation post with the SNEU team, which included several officers. The team's target location was § 87(2)(b) and § 87(2)(b). PO Mohip did not initially recall with whom he was partnered that evening, but after viewing the SNEU roll call, he stated that his partner is usually PO Gamarra; therefore, it was likely this PO Gamarra was his partner on the night in question. PO Mohip's memo book (enclosure 21a-b) reflects that his SNEU team conducted a set at § 87(2)(b) and § 87(2)(b) at 7 PM.

On October 2, 2007 at approximately 9:15 PM, PO Mohip observed a vehicle (which was in front of the officer's own RMP), that approached an individual standing on a street corner. This individual approached the driver-side of the vehicle, at which time the driver and this other person engaged in a conversation. PO Mohip also observed the driver put his hand out of the window and engage in what appeared to be, given his experience, a hand-to-hand narcotics transaction. However, PO Mohip did not actually see anything being exchanged. The person on foot then walked away from the vehicle, which was at the corner for about fifteen seconds. The driver, who did not leave his vehicle at any point, then moved northbound on § 87(2)(b). PO Mohip then forwarded the information regarding the vehicle's description (though he did not recall the specific information that he provided) to the apprehension team. PO Mohip, who did not move from his assigned post, stated that the apprehension team followed the vehicle and subsequently stopped it (though out of PO Mohip's sight). PO Mohip had previously worked in the area, and had made numerous arrests. Further, the operation was undertaken because the area was drug-prone; this instance had not been the first time that officers had worked this particular location. PO Mohip, who was parked south from § 87(2)(b) on § 87(2)(b) was partnered with another officer that evening (though he could not initially recall this officer's

name, PO Mohip, after being shown the roll call for the evening of October 2, 2007, confirmed that his partner was PO Gamarra). PO Mohip stated that, more than likely, he would have put the description of the vehicle over the air, as he was not able to see the driver. PO Mohip did not recall what kind of description he forwarded to the apprehension team, though he did note that the subject vehicle was moving northbound on § 87(2)(b) after which the driver took either a right or a left onto another street that PO Mohip was unable to confirm. After the vehicle left the scene, he did not observe it again at the location. PO Mohip did not recall when the SNEU set was shut down, but noted that it would have been shut down if no arrests were made.

#### *PO Vincent Calderone*

PO Calderone is a § 87(2)(b)-old white male who is § 87(2)(b), and has brown hair and blue eyes. PO Calderone was interviewed at the CCRB on November 12, 2008 (Enclosure 22a-b). On the evening of October 2, 2007, PO Calderone worked from 5:30 PM on October 2, 2007 until 2:05 AM the following morning. He was assigned to the precinct's SNEU team and worked in uniform. Partnered with Sergeant Fiorello, PO Calderone was assigned to RMP 1775. PO Calderone did not have memo book entries regarding the incident.

At approximately 9:15 PM on October 2, 2007—the first night with his new unit—PO Vincent Calderone, as part of the 115 Precinct's SNEU team (comprised of himself, Sergeant Fiorello, PO Cabrera, and PO Wancel), was conducting an operation on § 87(2)(b) and § 87(2)(b) in Queens. During the operation, the team's observation post called out a description of a black male, a person who was later determined to be § 87(2)(b) (PO Calderone could not remember the specific nature of that description; also, he could not recall any description regarding the vehicle that § 87(2)(b) was driving.) Shortly thereafter, an RMP, consisting of PO Wancel and Cabrera, stopped § 87(2)(b) vehicle near § 87(2)(b) and § 87(2)(b). At that time, PO Cabrera and PO Wancel had an interaction with § 87(2)(b) after which they radioed Sergeant Fiorello, the supervisor of the SNEU team, for assistance. PO Calderone, as the sergeant's operator (in vehicle #1775), proceeded to drive southbound on § 87(2)(b) (a one-way street) to the scene; he then stopped his RMP a few car-lengths away—about thirty feet—from § 87(2)(b) vehicle, on the other side of the street. Sergeant Fiorello then instructed PO Calderone to stay behind with the RMP.

By the time that Sergeant Fiorello and PO Calderone arrived, § 87(2)(b) irate, was already out of his vehicle, standing by the driver's door (though he was not handcuffed). PO Calderone observed § 87(2)(b) yelling at PO Cabrera and PO Wancel; he also observed Sergeant Fiorello have some sort of interaction with § 87(2)(b). PO Calderone was unable to make out exactly what was being said between Sergeant Fiorello and § 87(2)(b) as he was standing about thirty feet away—though he could tell that § 87(2)(b) was screaming at Sergeant Fiorello. PO Calderone stated that Sergeant Fiorello neither screamed at, nor touched, § 87(2)(b). Also, PO Calderone could not recall if § 87(2)(b) made any profane remarks, and stated that Sergeant Fiorello did not use obscenities against § 87(2)(b). During the incident, PO Calderone, who at no time interacted with § 87(2)(b) did not see him frisked; did not see § 87(2)(b) car searched; did not hear any officers threaten to arrest him; and he did not hear § 87(2)(b) make any request for officers' names and shield numbers. After this interaction, which lasted less than five minutes, Sergeant Fiorello returned to his RMP, and instructed PO Calderone to drive away.

#### *PO German Ramos*

PO German Ramos is a § 87(2)(b)-old Hispanic male who is § 87(2)(b). He has black hair and brown eyes, and was interviewed at the CCRB on November 27, 2007

(enclosure 10a-b). On October 2, 2007, PO Ramos was assigned as a Domestic Violence officer, and worked from 3 PM until 11:45 PM. PO Ramos worked with PO Elizabeth Delarosa-Perez, and was not assigned to a vehicle. (Later in his statement PO Ramos corrected himself by saying that he had been assigned a vehicle, but did not use it on the day of the incident). PO Ramos did not have any entries in his memo book regarding the incident in question.

PO Ramos, who was in uniform, stated that other officers must have used the vehicle to which he was assigned because he remained inside the stationhouse for the duration of his tour. As an officer who records complaints of domestic disputes, PO Ramos usually works inside his precinct. In addition, PO Ramos stated that he did not perform a vehicle stop on the incident date and time in question.

#### *PO Elizabeth Delarosa-Perez*

PO Elizabeth Delarosa-Perez is a § 87(2)(b)-old Hispanic female who is § 87(2)(b). She has brown hair and brown eyes. PO Delarosa-Perez was interviewed at the CCRB on December 6, 2007 (enclosure 11a-b). PO Delarosa-Perez worked on October 2, 2007 from 2 PM until 11:30 PM that evening, and was assigned to the Domestic Violence Unit. PO Delarosa-Perez worked with PO Ramos that evening, was not assigned to a vehicle, and she did not have any entries in her memo book (enclosure 12a-b) regarding the incident in question. Further, PO Delarosa-Perez did not have any recollection of the incident.

PO Delarosa-Perez was displayed a copy of the vehicle assignment sheet filled out by her command. The document indicated that she and PO Ramos were assigned to vehicle number 1439, which was one of the vehicles that § 87(2)(b) stated was present at the date and time of the incident. However, PO Delarosa-Perez explained that a car may be assigned to her unit, but that this does not necessarily mean that her unit will actually use the RMP on that day. An assignment change would be authorized by a sergeant (and would be noted in the command log). As an officer assigned to domestic violence issues, PO Delarosa-Perez performs most of her work in her office. PO Delarosa-Perez did not leave her precinct at all on October 2, 2007 because she was preparing a report.

#### **Officers Not Interviewed**

§ 87(2)(g)

#### **Police Department Documents**

##### *Stop, Question, & Frisk Log (Enclosure 24)*

§ 87(2)(b) appears on the Stop & Frisk log on October 2, 2007. This document notes that § 87(2)(b) was stopped and frisked by PO Wancel for suspicion of criminal possession of a controlled substance.

##### *115<sup>th</sup> Precinct Roll Call (Enclosures 26a-k)*

The roll for October 2, 2007 indicates that Sergeant Fiorello, PO Wancel, PO Mohip, PO Cabrera, PO Calderone, and PO Gamarra worked together as part of a SNEU team.

*115<sup>th</sup> Precinct Command Log Entries (Enclosures 27a-o)*

The 115<sup>th</sup> Precinct's command log makes no reference to § 87(2)(b)

*Daily Vehicle Assignment Sheet (Enclosure 28)*

The Daily Vehicle Assignment Sheet notes the vehicles used on October 2, 2007 by the first, second, and third platoons, including those mentioned by § 87(2)(b) #1439 and #1775.

*Fleet Services Database* (Enclosure 29)

The Fleet Services Database reflects that RMPs 1439 and 1775 are both white, 2005 model year Chevrolet Impalas. On October 2, 2007, these vehicles were assigned to the 115<sup>th</sup> Precinct.

### Complainant's CCRB History (Enclosure 7)

§ 87(2)(b) has no prior complaints with the CCRB.

**Civilian Criminal Conviction History** (Enclosure 30a-z)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

**Officers' CCRB History** (Enclosures 2, 3, 4, 5, and 6)

Sergeant Lawrence Fiorello, a thirteen-year member of the NYPD, has been the subject of the following substantiated charges: In CCRB case #200613635, the Board recommended charges when it substantiated an allegation of a strip search. A disposition in this case is pending (Enclosure 2).

PO Bobby Mohip, a three-year member of the NYPD, has been the subject of the following substantiated charges: In CCRB case #200507503, the Board recommended charges when it substantiated an allegation of a vehicle search. With respect to this allegation, the NYPD imposed a penalty (instructions) against PO Mohip. In this same case, the Board recommended charges when it substantiated allegations regarding a threat of arrest; the use of discourteous language; and abuse of authority when he told another officer to use physical force against a complainant. The dispositions of these particular substantiated charges are pending (Enclosure 3).

PO Vincent Calderone, a three-year member of the NYPD, has been the subject of the following substantiated charge: In CCRB case #200609865, the Board recommended charges when it

substantiated an allegation that PO Calderone refused to process a civilian complaint. Ultimately, PO Calderone received instructions related to the substantiated charge (Enclosure 6).

PO Alexander Wancel, a four-year member of the NYPD, and PO Yisel Cabrera, a seven-year member of the NYPD, do not have any prior CCRB allegations against them (Enclosures 4 and 5).

## **Conclusions and Recommendations**

### **Identification of Subject Officers**

The officers noted in this report, including Sergeant Fiorello, PO Wancel, PO Cabrera, PO Calderone, and PO Mohip, are all listed on their precinct's roll call as being assigned to the SNEU team for October 2, 2007. Further, § 87(2)(b) provided a description of PO Wancel which closely matches the officer's pedigree; he also provided the numbers of the RMPs on scene, one of which, #1439, was determined through investigation to have been the one driven by PO Wancel. Additionally, PO Wancel acknowledged his interaction with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) also noted the description of a female officer; § 87(2)(g)

PO Cabrera also acknowledged an interaction with § 87(2)(b) and although the description provided by § 87(2)(b) does not match her pedigree, she confirmed that she was working with PO Wancel. § 87(2)(b) additionally mentioned that there was another RMP on scene, #1775, determined through investigation to have been occupied by Sergeant Fiorello and his operator, PO Calderone. § 87(2)(g)

§ 87(2)(b) alleged that he spoke with a supervisor described as a heavyset white male with dark, brown hair and who stands 6'0", and who spoke obscenely to § 87(2)(b) threatened to arrest him, and refused to provide his name and badge number. § 87(2)(g)

### **Undisputed Facts**

It is undisputed that § 87(2)(b) was pulled over by PO Wancel and PO Cabrera in the vicinity of § 87(2)(b) and § 87(2)(b) in Queens.

### **Disputed Facts**

§ 87(2)(g)

### **Allegations Not Pleaded**

During his CCRB interviews, PO Wancel admitted to having frisked § 87(2)(b) However, § 87(2)(b) himself made no mention that PO Wancel, or any other officer, frisked him. § 87(2)(g) Further, § 87(2)(b) stated that an officer at the 110<sup>th</sup> Precinct did

not take down his complaint. § 87(2)(g)

### Assessment of Evidence

§ 87(2)(g)

Sergeant Fiorello's operator, PO Calderone, noted that the observation post transmitted a description of a black male, though he did not recall the exact nature of this description or that of the vehicle he was driving. Further, PO Cabrera stated that she received information that a driver had been spotted in a drug-prone location, and that a description of the driver's vehicle was provided (though she did not remember the exact details of the description); her partner, PO Wancel, mentioned that a call was made regarding a Suburban-type vehicle involved in possible drug activity, which he subsequently stopped. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

**Allegation A: PO Alexander Wancel stopped the car in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

it is recommended that Allegation A be closed as *unsubstantiated*.

**Allegation B: PO Alexander Wancel searched the car in which § 87(2)(b) was an occupant.**

§ 87(2)(g) Kamins' New York Search and Seizure states that "once the occupants are *outside* the car," as is the situation in this case, "New York courts will find that a search has been conducted when the officer 'breaches the plane of the doorway'" (Enclosures 1a-k). PO Wancel initially stated that he conducted a visual search of "grabbable areas" of § 87(2)(b)'s vehicle that were in plain sight; he later noted that he used his flashlight to inspect under the driver-side seat and in the center console, actions that would have necessitated his breaking the vehicle's plane. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) under the Fourth Amendment, police officers "may search a vehicle and any containers found inside when they have probable cause to believe that it contains contraband, a weapon, or evidence of crime" (Enclosures 1a-k). § 87(2)(g)

§ 87(2)(g)

Kamins has noted that "the consent of a driver to search a vehicle is also a valid substitute for probable cause" (Enclosure 1a-k). Consent in this respect is defined as a "true act of will, an unequivocal product of an essentially free and unconstrained choice" (Enclosures 1a-k).

§ 87(2)(g) it is recommended that Allegation B be closed as *exonerated*.

**Allegation C: PO Yisel Cabrera searched the car in which § 87(2)(b) was an occupant.**

§ 87(2)(b) who noted that he granted authorization to have his vehicle searched, mentioned that PO Cabrera searched his SUV. PO Cabrera, for her part, mentioned that she was not involved in the search of § 87(2)(b) vehicle; indeed, the officer indicated that one did not take place.

§ 87(2)(g) it is recommended that Allegation C be closed as *exonerated*.

**Allegation D: PO Vincent Calderone searched § 87(2)(b)**

§ 87(2)(b) has also alleged that PO Calderone searched him, going so far as to inspect his pockets, and ultimately removing his wallet. PO Calderone indicated that October 2, 2007 was his first evening with the precinct's SNEU team; that Sergeant Fiorello instructed to him stay with the RMP; and that he did not interact with § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) it is recommended that Allegation D be closed as *unsubstantiated*.

**Allegation E: Sgt. Lawrence Fiorello spoke obscenely to § 87(2)(b)**

**Allegation F: Sgt. Lawrence Fiorello threatened to arrest § 87(2)(b)**

**Allegation G: Sgt. Lawrence Fiorello refused to provide his name and shield number to § 87(2)(b)**

With regard to the allegations against Sergeant Fiorello, § 87(2)(b) has alleged that the sergeant used obscenities and threatened to arrest him, and that he refused to provide his name and shield number. Sergeant Fiorello has countered by saying that his interaction with § 87(2)(b) lasted all of two minutes, and that he did not use obscenities against him. Sergeant Fiorello also stated that he did not threaten § 87(2)(b) with arrest, and that § 87(2)(b) did not ask him or the officers for their respective names and badge numbers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that Allegations E, F, and G be closed as *unsubstantiated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: